

CHAPTER 39

An Act to authorise the use of an alternative method of assessing drainage rates in the case of land falling within subsection (4) of section twenty-two of the Land Drainage Act, 1961. [19th July, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Drainage rates—
alternative
method of
calculation.
9 & 10 Eliz.
c. 48.

1.—(1) Sections twenty-two and twenty-three of the Land Drainage Act, 1961 (provisions as to the basis of assessment of drainage rates made for periods beginning after the end of March, nineteen hundred and sixty-three) shall have effect subject to the following provisions of this section.

(2) Where a drainage board resolves that this section shall apply for the purposes of drainage rates made by the board then, for the purposes of any drainage rate so made for a period beginning while the resolution is in force, subsection (4) of the said section twenty-two (which subsection sets out the basis of assessment applicable in the case of land for which a rateable value is shown in the valuation list for the time being in force) shall have effect as if for paragraphs (a) and (b) thereof there were substituted the following paragraphs:—

“(a) the value on which the rate is assessed shall be the value arrived at by taking one-third of the rateable value so shown and applying thereto the relative fraction arrived at in accordance with the provisions of subsections (3) to (6) of section twenty-three of this Act; and

(b) the amount per pound at which the rate is assessed shall be the same as the amount per pound (of annual value) at which the rate is assessed under subsection (4) of section twenty-four of the Land Drainage Act, 1930.”,

20 & 21 Geo. 5.
c. 44.

and accordingly subsection (1) of the said section twenty-three shall not apply.

Short title
and extent.

2.—(1) This Act may be cited as the Drainage Rates Act, 1962.

(2) This Act does not extend to Scotland or to Northern Ireland.

